

The Paradox of Power

Critical Essay

The government, leaders, and social hierarchy of Ancient Civilizations – my enduring issue is determining whether they were just or unjust, focusing on Ancient Mesopotamia, Ancient India, and Ancient Navajo. The government and leaders of Ancient Mesopotamia and Ancient India were mainly unjust as justice was carried out and swayed by factors like theocratic belief and social hierarchy in their monarchy, Ancient Navajo, however, was comparatively more just, as they valued community consensus and democratic elements.

ANCIENT MESOPOTAMIA

The Ancient Mesopotamian government can be described as a theocratic monarchy as it was deeply intertwined with the religious beliefs and monarchical rule implemented into its political structure. Religion played a pivotal role in social status and hierarchy, such as the priests and religious leaders who interpreted the will of God and gradually assumed governing responsibilities, as well as choosing their monarch. “Common Mesopotamians considered the king as the representative of the city’s patron god, the god’s overseer on earth..” (Mesopotamian Government – History On The Net 2019). Social hierarchy and status being intricately linked to religious adherence highlighted the influence of their faith in shaping the Mesopotamian social structure. The people viewed the king as the earthly representative of the city's patron deity, further solidifying the connection between religious authority and political leadership. The governmental structures of Ancient Mesopotamia and Ancient India shared certain similarities in these ways, but also exhibited vast differences; like the previously mentioned theocratic elements. In Mesopotamia, the rulers were often considered representatives of deities; similarly, in Ancient India, rulers were often linked to religious rituals and to uphold righteousness (dharma) in accordance with their religious principles. The two Ancient Civilizations also shared the hierarchy concept; Mesopotamia's social structure was organized around religious roles and in Ancient India, the caste system played a crucial role in determining social status and prestige. However, the distinctions of their government and justice system lay mainly in their faith and legal codes. A key difference was the religious diversity of these civilizations. While both had theocracy, Ancient India exhibited a greater diversity of religious ideologies and practices in their government. The coexistence of various religious traditions, such as Hinduism, Buddhism, and Islam, contributed to the operation of the government and justice system. The significance of

religion extended into the realm of justice for Mesopotamia, exemplified by the renowned Hammurabi Code, one of the earliest written legal codes, emphasizing a system of strict justice. This comprehensive legal code, by King Hammurabi around 1750 BCE, sought to establish justice rooted in divine principles. While the code is renowned for its early attempt at codifying laws, it also raises questions about fairness for its strict "eye for an eye" concept. Ancient India, on the other hand, did not produce a single legal code but rather relied on Dharmashastra texts, which provided guidelines for ethical and moral conduct – in summary, the topic of justice in Ancient Mesopotamia is historically debatable as it was swayed by religious code. The Code of "Lex Talionis," or the law of retaliation, wherein punishments were tailored to match the nature of the crime seemed entirely just. But its "Eye for an Eye" concept can reflect a harsh and vindictive system. "The phrase 'an eye for an eye, and a tooth for a tooth' represents what many people view as a harsh sense of justice based on revenge. However, the entire code is much more complex than just the one phrase." (Hammurabi's Code–USHistory 2022) Some argue that the code was unjust for other reasons, like the disproportionate favor of the nobles and hierarchy; providing harsher penalties for offenses against the upper class compared to those against commoners. Therefore, despite its historical significance, the Hammurabi Code's application of justice appears to have been more aligned with maintaining social order and hierarchy than ensuring absolute justice.

ANCIENT INDIA

Ancient India remained a monarchy for centuries, witnessing the rule of maharajas, emperors, kings, and different rulers with different religions, policies, and ideals. But sometimes these factors weighed too heavily on the justice system. Before the establishment of a formal government, nomadic lifestyles prevailed, but as agricultural communities grew, tribal organizations emerged, with the tribe's head assuming the role of a raja or king, without the formally developed concept of kingship much like Ancient Navajo. Over time, kingdoms united and evolved under the rule of a monarch, which saw similar democratic elements as ministers and officials were appointed to govern alongside the monarch, significantly impacting the justice system and decision-making processes. In Ancient India, where Hinduism was the main theocratic belief – similar to Ancient Mesopotamia's code, the ancient laws and legal principles were deeply rooted and stemmed from the religions as well as the social practices of the Hindus, like the concept of Dharma. "Dharma is a concept of social order and duty that sustains the whole universe" (Ancient India–ThePluralismProject) Ancient India employed the term

‘Dharma’ to signify the concept of law because it brought under its orbit the laws of physical science, and also social laws which the experience, wisdom, and intuition of educated scholars who interpreted the will of God. To distinguish such individuals, the ancient Hindu social system was characterized by the caste system, sharing some similarities to Mesopotamia’s social hierarchy, and the joint family system, which the kings' officials consisted of. However, unlike Mesopotamia, there were four specific government-implemented castes rather than the norms of social hierarchy. “Citizens were classified according to their Varna (castes). 'Varna' defines the hereditary roots of a newborn, it indicates the color, type, order, or class of people. Each Varna propounds specific life principles to follow; newborns are required to follow the customs, rules, conduct, and beliefs fundamental to their respective Varnas.” (Varna–WorldHistory.Org) The four categories were as follows, Brahmins; the caste of religious leaders, Kshatriyas; warriors, royalty, political leaders, Vaishyas; merchants, traders, the working class, and the lowest class, Sudras; the laborers and peasants. Caste was attributed to all aspects of one’s life – wealth, income, power, prestige, and justice; for the same reason in Ancient Mesopotamia’s hierarchy, wherein the legal system undoubtedly exhibited a bias towards the upper class, consequently suggesting that Ancient India's government was inherently unjust as the caste system stratified social structure with significant disparities in privileges and rights among different groups.

ANCIENT NAVAJO

Ancient Navajo was the most different of the three civilizations, as its governance couldn't simply be defined with one term. It incorporated democratic, theocratic, and monarchic elements, based on a system of clans and kinship groups; but led by equality. The society was organized around matrilineal clans, with leadership roles often passed down through the maternal line. Decision-making and dispute resolution were often handled through consensus within the community, with leaders emerging based on qualities such as wisdom, experience, and respect rather than through formal elections leaving the decision up to the highest power as seen in Ancient Mesopotamian and Indian culture. "They lived in family groups and clans and resolved disputes by "talking things out" in order to reach agreed settlements and restore harmony in the community. The judges were the hozhoni' Naat'aah, or peace chiefs, chosen by community consensus, because of their wisdom, spirituality, exemplary conduct, speaking ability, and skill in planning for community survival and prosperity. “Unlike European law, traditional Navajo law was not based on power but based on relationships, respect, and mutual need.” (Courts Navajo–NavajoNsn) Navajo governance emphasized principles of balance, harmony, and respect

for the natural world and its people. The concept of "Hózhó," which translates to a state of balance and harmony, was central to Navajo philosophy, and also heavily applied to the justice system; disputes, social, and civil justice were all solved by community consensus making its governance of the most just when compared to Ancient India and Ancient Mesopotamia.

In conclusion, the evaluation of justice in the governments of Ancient Mesopotamia, Ancient India, and Ancient Navajo reveals varying degrees of fairness and injustice, a recurring factor being religion in the theocratic concepts built into each civilization, affecting the social and civil justice for the better or worse. The takeaway? “Learn from history or be doomed to repeat it” – it is necessary for our societies to critically examine and always question their systems, holding leaders accountable for fostering justice and equity. As we navigate the complexities of governance in the modern era, the history we learn serves as a lesson, reminding us that the pursuit of justice is not only an enduring issue but a collective responsibility for the prosperity of humanity.

SOURCES

BODY 1: ANCIENT MESOPOTAMIA

<https://www.historyonthenet.com/mesopotamian-governments#:~:text=For%20most%20of%20its%20history,almost%20be%20described%20as%20Federalist.>

<https://avalon.law.yale.edu/ancient/hamframe.asp>

<https://www.history.com/news/hammurabi-code-legal-system-influence>

<https://factsanddetails.com/world/cat56/sub363/entry-6077.html>

BODY 2: ANCIENT INDIA

<https://www.culturalindia.net/indian-history/ancient-india/ancient-government.html>

http://theindianhistory.org/justice-and-laws-in-ancient-india.html#google_vignette

<https://digitalcommons.calpoly.edu/cgi/viewcontent.cgi?article=1043&context=socssp>

<https://www.worldhistory.org/article/1152/caste-system-in-ancient-india/>

<https://www.ushistory.org/civ/8b.asp>

BODY 3: ANCIENT NAVAJO

<https://courts.navajo-nsn.gov/history.htm#:~:text=Prior%20to%20the%20arrival%20of,%27aah%2C%20or%20peace%20chiefs>.

https://www.canva.com/design/DAFy14JU_o4/MzVyFbwO3SX5EqOESj-_6A/edit